

24LBCV01769 24LBCV01769

County: los-angeles

Division: Civil Law and Motion

Department: S27

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1. History of Action

Plaintiffs filed this action on 8/21/24. The case has been set for Final Status Conference on eleven occasions. The first FSC was scheduled for 10/14/25, and was most recently scheduled for 5/13/26. On the earlier occasions, the FSC was continued because the parties were litigating the case. On 12/05/25, 3/20/26, 3/27/26, and 4/03/26, the FSC was continued because the trial court was engaged in trial. On 4/13/26, 4/17/26, 5/01/26, and 5/13/26, Plaintiffs' attorney appeared and indicated he was not ready because he was engaged in another trial. On 5/13/26, the Court specially set a hearing on a motion to dismiss for 9/01/26. The Court also scheduled a trial setting conference for 9/01/26.

2. Motion to Dismiss

a. Parties' Positions

Defendant moves to dismiss. It moves on two grounds. First, it contends more than two years have passed and Plaintiffs have not diligently brought the action to trial. Second, it contends Plaintiffs failed to serve a settlement order as ordered to do by the Court.

Plaintiffs oppose, contending they are prosecuting their action and their attorney's engagement in other trials does not justify dismissal of the action. They concede they made a settlement offer after the Court's deadline to do so, but contend this is not grounds for dismissal of the action.

3. Dismiss

CCP §583.410 permits dismissal for delay in prosecution "pursuant to this article," and one such circumstance is when the plaintiffs, through their own fault, have failed to bring the action to trial within two years. §583.410(a). Such ground for dismissal is discretionary, and CRC 3.1342(e) details the factors to be considered when determining whether to dismiss the action or not.

This is a difficult issue. While it is true that the Court continued the FSC numerous times, the FSC was also continued four times in a row due to Plaintiffs' attorney's engagement in other trials. This cannot go on indefinitely. The Court is inclined not to impose a harsh dismissal penalty based on Plaintiffs' attorneys' past engagement in other matters, but will require Plaintiffs' attorneys to schedule the trial, at today's Trial Setting Conference, on a date on which Plaintiffs' attorneys will be available. The Court advises Plaintiffs that their failure to have an attorney available for trial on the next scheduled trial date will likely result in dismissal of the action.

The Court finds there is no statutory or other authority permitting dismissal for failure to make a settlement offer, even if the Court orders a party to do so. The motion on this ground is therefore also

denied. Importantly, Plaintiffs did ultimately make such an offer, though the court-ordered deadline to do so had already passed when they did so.

The parties are reminded that there is a Trial Setting Conference on calendar concurrently with the hearing on the above motion. The Court asks the parties to make arrangements to appear remotely at the FSC and hearing on the motion.